

State Of Nct Of Delhi vs Shiv Charan Bansal & Others on 29 May, 2009

Author: S.Muralidhar

Bench: S. Muralidhar

IN THE HIGH COURT OF DELHI AT NEW DELHI

Reserved on: April 29, 2009

Date of decision: May 29, 2009

CRL.REV.P. No. 335 of 2008

STATE OF NCT OF DELHI Petitioner
Through: Mr. Vikas Pahwa, Advocate.

versus

SHIV CHARAN BANSAL & ORS. Respondents
Through: Mr. R.K. Naseem with Mr. Nitin
Tittal, Mr. Manish Kumar, Mr. Sachin Dev
Sharma and Mr. Dinesh Sharma, Advocates
for R-1.
Ms. D.Puja Anand with Ms. Pusshp Gupta,
Advocates for R-2.
Mr. Ramesh Kumar Gupta, Senior Advocate
with Mr. Sanjay Rathi, Advocate for R-3.
Mr. Hariharan, Advocate for Rajbir Malik.
Mr. K.K.Sud, Senior Advocate with Mr.
G.S.Raghav and Mr. Pankaj Jain, Advocates
for Narender Mann
Mr.R.P.Singh, Advocate for Joginder Singh
Sodhi.

WITH

CRL.REV.P. No. 405 of 2008

SACHIN BANSAL Petitioner
Through: Ms. D.Puja Anand with Ms.
Pusshp Gupta, Advocates

versus

STATE Respondent

Through: Mr. Pawan Bahl, APP.

WITH

CRL.REV.P. No. 335 of 2008

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CRL.REV.P. No. 342 of 2008

NARENDER MANN

..... Petitioner

Through: Mr. K.K.Sud, Senior Advocate
with Mr. G.S.Raghav and Mr. Pankaj Jain,
Advocates.

versus

STATE

..... Respondent

Through: Mr. Vikas Pahwa, Advocate.

CRL.REV.P. 191/2008

KANTA DEVI

..... Petitioner

Through Mr. Sanjiv Kumar Jha, Advocate

versus

STATE & ORS

..... Respondents

Through Mr. R.K. Naseem with Mr. Nitin
Tittal, Mr. Manish Kumar, Mr. Sachin Dev
Sharma and Mr. Dinesh Sharma, Advocate
for Shiv Charan Bansal and Shailender
Singh.

Ms. D. Puja Anand with Ms. Pusshp Gupta,
Advocate for R-2.

Mr. Pawan Bahl, APP for State.

Mr. Inderjeet Singh, Advocate for Joginder
Singh Sodhi.

Mr. Ramesh Kumar Gupta, Senior Advocate
with Mr. Sanjay Rathi, Advocate for R-3.

CRL.REV.P. 430/2008

SHAILENDER SINGH

..... Petitioner

Through Pt. R.K Naseem with Mr. Nitin
Tittal and Mr. Manish Kumar, Advocate

versus

STATE OF DELHI

..... Respondent

Through Mr. Pawan K. Bahl, APP

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AND

BAIL APPLN. No. 516 of 2009

NARENDER MANN Petitioner
Through: Mr. K.K.Sud, Senior Advocate
with Mr. G.S.Raghav and Mr. Pankaj Jain,
Advocates.

versus

THE STATE (NCT OF DELHI) Respondents
Through: Mr. Pawan Bahl, APP.

CORAM:
HON'BLE DR. JUSTICE S. MURALIDHAR

- | | | |
|----|---|-----|
| 1. | Whether Reporters of local papers may be allowed to see the judgment? | No |
| 2. | To be referred to the Reporter or not? | Yes |
| 3. | Whether the judgment should be reported in Digest? | Yes |

JUDGEMENT

1.1 The order dated 17th March 2008 passed by the learned Additional Sessions Judge („ASJ) in Sessions Case No. 6 of 2007 arising out of FIR No.200 of 2006 registered at Police Station Mangol Puri, concerning the murder of deceased S.N.Gupta on 21st March 2006, has given rise to this batch of petitions. The State is aggrieved by the order to the extent that some of the accused i.e. Rajbir Malik, Lalit Mann and Shiv Charan Bansal have been discharged and to the extent that accused Shailender and Sachin Bansal have been charged only for CRL.REV.P. No. 335 of 2008 page 3 of 45 the offence under Section 25 of the Arms Act. The State is also aggrieved to the extent that Narender Mann and Jogender Singh Sodhi have not been charged for the offence under Section 120B IPC but only with Section 302 read with 34 IPC. The complainant Kanta Devi, the wife of the deceased S.N. Gupta, has filed a separate revision petition praying for the same reliefs as the State. The revision petition by the accused Shailender Singh and Sachin Bansal have challenged the said order to the extent that they have been charged with the offence under Section 25 of the Arms Act. According to them they ought to have been discharged. Narender Mann has filed a criminal revision petition challenging the order on charge claiming that he too should have been discharged. He has also separately filed a bail application. Since all these petitions arise out of the common set of facts they are being disposed of by this common judgment. 1.2 At the outset this Court allows an application by the State (Crl.M.A.No. 3994 of 2009) seeking impleadment of Narender Mann and Joginder Sodhi in its revision petition. Both were represented by counsel and heard in the revision petition by the State. The application stands disposed of accordingly.

Case of the Prosecution

2. The case of the prosecution is that at around 4.30 pm on 21 st March 2006 the call bell rang at the residence of deceased S.N. Gupta. His CRL.REV.P. No. 335 of 2008 page 4 of 45 wife Kanta Devi (the complainant) opened the main door and found a person with beard aged about 25 to 30 years wearing spectacles, black cap with a bag standing at the door. He told the complainant that he was a courier boy and had brought a letter for S.N. Gupta. The complainant went inside the house, informed S.N.Gupta and then went to the kitchen. S.N. Gupta went to the door of the house and received the letter. The complainant who was in the kitchen heard 2 or 3 gun shots. She ran towards the door and in the meanwhile the maid servant also shouted for her. The complainant found S.N. Gupta lying on the floor and blood was coming out from his chest. She called the neighbours and with their help the deceased was taken to the Jaipur Golden Hospital where the doctors declared him „brought dead .

3. Information about the incident was received in the police station vide DD No. 26 dated 21st March 2006. SI Dharambir Singh along with Constable Vijay Kumar and Constable Prasan reached the spot. Blood was found at the spot near the door of the House No. 260, Deepali Enclave, Pitam Pura. A rukka was sent to the police station at about 6.50 pm. FIR No. 200 of 2006 under Sections 120B, 302, 201/120B read with Section 34 IPC and 25/27 of the Arms Act was registered at PS Mangol Puri.

4. On 21st March 2006 itself Satish Gupta and Suresh Gupta, sons of R.D. Gupta, and the brothers of the deceased S.N. Gupta, made CRL.REV.P. No. 335 of 2008 page 5 of 45 statements to the police under Section 161 CrPC. According to them S.N. Gupta had invested a considerable amount of money in certain (chit fund) „committees organised by accused Shiv Charan Bansal. Rajesh Gupta, the son of deceased S.N. Gupta also made a statement under Section 161 CrPC to the police on 21 st March 2006. He informed them that both he and his father deceased S.N. Gupta, had invested a lot of money in the committees being run by Shiv Charan Bansal and his son Sachin Bansal. Rajesh Gupta and Sachin Bansal jointly owned Action Shoes Private Limited („ASPL) which had a factory at Bahadurgarh. Rajesh Gupta had desired to separate himself from the partnership. Rajesh Gupta, Shiv Charan Bansal and Sachin Bansal also were in a partnership firm M/s. Akash International earlier. When Rajesh Gupta left that partnership the money invested by him therein was taken away by Shiv Charan Bansal and Sachin Bansal. Rajesh Gupta alleged that the father and son duo also intended to take away the factory of ASPL at Bahadurgarh in similar fashion. Despite the deceased S.N. Gupta and Rajesh Gupta demanding return of the money invested by them in the committees, Shiv Charan Bansal and Sachin Bansal did not do so.

5. Satish Gupta also informed the police that the deceased S.N. Gupta had told him that both Shiv Charan Bansal and Satish Bansal intended to take away the factory at Bahadurgarh and they had also not repaid a large amount owing to them as a result of the dissolution of the CRL.REV.P. No. 335 of 2008 page 6 of 45 partnership firm Akash International. Suresh Gupta, a brother of Satish Gupta and late S.N. Gupta, informed the police that his son Naveen Gupta has been threatened even earlier by accused Narender Mann, Lalit Mann and their cohorts with a view to extorting money. Suresh Gupta also received threats from these accused that he would be killed along with his family members. Suresh Gupta had told the deceased S.N. Gupta about these threats. Suresh Gupta on the advice of the deceased S.N. Gupta, lodged a complaint against Narender Mann at PS Mangol Puri.

6. Naveen Gupta @ Cheenu, the son of Suresh Gupta also made a statement to the police. Apart from mentioning about the threats received on the telephone, he named Narender Mann, Lalit Mann and Sachin Bansal along with their associates as being responsible for the murder of the deceased.

7. One Ashok Kumar Aggarwal son of Shri Sunder Lal also gave a statement under Section 161 CrPC to the police on 7 th April 2006 stating that Sachin Bansal and Shiv Charan Bansal were in the business of running 60 to 70 committees and each committee had sums ranging in between 5 to 20 lakhs. He too had invested in about 5 to 7 such committees. He confirmed that the deceased S.N. Gupta had invested around 70 to 80 lakhs in the committees being run by Shiv Charan Bansal and that the deceased was a member of several of CRL.REV.P. No. 335 of 2008 page 7 of 45 such committees of which Shiv Charan Bansal was the organiser. He also stated that Sachin Bansal was also associated with the committees. It is important to note that Ashok Kumar Aggarwal later made a statement under Section 164 CrPC before the learned Metropolitan Magistrate („MM) to the above effect on 31st May 2006.

8. On 7th April 2006 one Ajit Prasad Gupta son of R.D. Gupta also stated that he had invested in 4 committees run by Shiv Charan Bansal and that he along with his son Sachin Bansal were running 70 to 80 such committees. He also confirmed that deceased S.N. Gupta had invested in nearly all of the committees run by Shiv Charan Bansal and Sachin Bansal. He also confirmed that the accused were dragging their feet about returning the moneys owing to S.N. Gupta. Ajit Prasad Gupta also made a statement before the learned MM on 1 st Jun 2006 under Section 164 CrPC.

9. According to the police Sachin Bansal was interrogated between 24th and 28th March 2006. At around 5 pm on 29th March 2006 he was arrested and his disclosure statement was recorded at around 8.30 pm on that day. Narender Mann, his brother Lalit Mann and the lawyer Rajbir Malik were arrested on 29th March 2006 when they were traveling in an Esteem car. It is stated that joint recoveries of a blank photo frame, a black cap, black goggles and a photo of the deceased were recovered from the Esteem car. Narender Mann made a CRL.REV.P. No. 335 of 2008 page 8 of 45 disclosure and offered to show the place where he had parked his car near the Deepali Colony, the shop from where he purchased the caps and goggles. He offered to get Shailender Singh arrested stating that it was Shailender Singh who gave him the weapon used in the murder. He offered to get the weapon recovered. He also offered to get recovered the Getz car in which Joginder Singh travelled to the place of murder and offered to get Joginder Singh arrested. Disclosure statements were also purportedly made on 29th March 2006 by Lalit Mann and Rajbir Singh.

10. On the pointing out of Narender Mann the place near Deepali Colony where he had parked his Getz car was located. On the pointing out of Narender Mann, the Getz car was recovered from the house in his village. On 30th March 2006 at around 5 am accused Joginder Singh was arrested and a black goggles and a cap were recovered from the car in which he was travelling. Joginder Singh then made a disclosure statement. Further, at the instance of Narender Mann an unlicensed weapon along with two live cartridges 7.65 mm were recovered from Flat No. A-11/35 Sector-7, Rohini, Delhi which allegedly was the office of accused Shailnder in the presence of his servant Padam Bahadur.

11. On 30th March 2006 the accused persons were produced in the court of the learned MM at Rohini. While accused Joginder Singh, CRL.REV.P. No. 335 of 2008 page 9 of 45 Lalit Mann and Rajbir Singh were sent to judicial custody, accused Narender Mann and Sachin Bansal were sent to police custody. On 31st March 2006 Narender Mann made a further disclosure statement. He informed the police that his licensed weapon was with Sachin Bansal whereas the license was at his residence and that he could get it recovered. On that date Sachin Bansal made a disclosure that after the murder was committed Narender Mann had given him a licensed pistol and 11 live cartridges in a polythene paper which was lying in his office at T-1/11 Industrial Area, Phase-1, Mangol Puri. The said licensed weapon of Narender Mann along with 11 cartridges were thereafter recovered from the office of Sachin Bansal. The arms license was also got recovered from Narender Mann from his residence.

12. On 12th April 2006 Joginder Singh refused to participate in the test investigation parade („TIP). On 25th April 2006 Shiv Charan Bansal was arrested. Shailender Singh was arrested on 2nd June 2006 after the anticipatory bail application filed by him was dismissed. On 4th June 2006 Shailender Singh identified the place from where the unlicensed weapon was recovered by Narender Mann. On 14th June 2006, the police found that the address given in the application made by Shailender Singh for a mobile phone was A-11/35 Sector-7, Rohini, Delhi.

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13. On 17th November 2006 the statement of Ramesh son of Jeet Lal resident of the ground floor of the house in Rohini from where the unlicensed weapon of Narender Mann was recorded. He stated that that the property was in the possession of Shailender Singh at the time of the murder and that the flat had been purchased by him in the name of his wife Pooja Singh. Shailender Singh was stated to have been running an office in the garage of the building for over three years and later the property was given on rent to Varuna Pump Agency. A supplementary charge sheet was filed thereafter on 26th November 2006.

14. According to the prosecution the material gathered during the investigation revealed the larger criminal conspiracy and the precise role of each of the accused as follows. Shiv Charan Bansal and his son Sachin Bansal were in the business of running committees where moneys would be invested and in turn reinvested by them to generate returns. S.N. Gupta and his son Rajesh Gupta had invested considerable sums of moneys in these committees. Rajesh Gupta had been in partnership with Shiv Charan Bansal and Sachin Bansal in a firm M/s. Akash International which subsequently was dissolved. The moneys invested therein by S.N. Gupta and his son were not returned by Shiv Charan Bansal and Sachin Bansal. Likewise, Rajesh Gupta had also invested ASPL along with Sachin Bansal. The said company had a factory at Bahadurgarh. The apprehension expressed by CRL.REV.P. No. 335 of 2008 page 11 of 45 deceased S.N. Gupta to his brother Suresh Gupta was that the accused Shiv Charan Bansal and Sachin Bansal might somehow take away the factory at Bahadurgarh. When S.N.Gupta and Rajesh Gupta would demand return of the moneys invested by them in the factory at Bahadurgarh, Shiv Charan Bansal and Sachin Bansal refused.

15. According to the prosecution Narender Mann had given on loan around Rs. 7 lakhs to Naveen Gupta on the recommendation made by Sachin Bansal. Together with interest, the amount owing to Narender Mann by Naveen Gupta worked to about Rs.15 lakhs. Narender Mann decide to effect improvements to his hotel in Manali and demanded the amount owing to him from Naveen Gupta alias Cheenu and his father. Instead of repaying him the money they lodged a complaint against him with the police. Narender Mann spoke to Sachin Bansal and asked him to return the moneys owing to him by Cheenu since he had lent money to the latter only on Sachin Bansal s recommendation. According to prosecution Sachin Bansal told Narender Mann that he too was owed money to the extent of over Rs. 30 lakhs by Naveen Gupta. Accordingly a criminal conspiracy was hatched by Sachin Bansal and Narender Mann to eliminate S.N. Gupta as that would mean that the moneys invested by S.N.Gupta in the committees could be retained by Sachin Bansal who would also be able to pay Narender Mann the money owed to him by Naveen Gupta. Sachin Bansal further offered to pay for the expenses involved in CRL.REV.P. No. 335 of 2008 page 12 of 45 carrying out the killing of S.N.Gupta.

16. Narender Mann agreed to the above proposal. He first asked his brother Lalit Mann to carry out the killing of S.N.Gupta by disguising himself as a Sikh. After initially agreeing, Lalit Mann backed out. Thereafter Jitender Singh Sodhi, who was a neighbour, was asked and he agreed to execute the task. It is alleged by the prosecution that accused Rajbir Malik, an Advocate who was advising Narender Mann, suggested that Narender Mann should not use his own licensed weapon for committing the murder but should use another weapon identical to it. It was expected that the police would seek to connect the cartridges recovered at the site with the licensed weapon of Narender Mann. They would then be able to show that the said weapon was never used but was kept in the custody of Sachin Bansal.

17. It is stated that pursuant to the conspiracy, Sachin Bansal took a photo of S.N.Gupta from his marriage album and gave it to Narender Mann. He also showed him the house of S.N.Gupta and informed him of S.N.Gupta s daily routine and further informed him that he receives courier packets/letters in connection with his investments in shares. Joginder Singh Sodhi was running a shop below the office of Lalit Mann. He was offered a sum of Rs.2 lakhs by Narender Mann for committing the murder of S.N.Gupta. Joginder Singh Sodhi was also shown the photograph of S.N.Gupta and the exact location of his CRL.REV.P. No. 335 of 2008 page 13 of 45 house. On the date of the offence, 21st March 2006, pursuant to the above criminal conspiracy, Narender Mann borrowed the Getz car from his cousin, the unlicensed pistol with five rounds from Shailender Singh. He then took Joginder Singh to the place of occurrence in his Getz car, by making him wear the goggles and cap and giving the cover with the name and address of S.N.Gupta. He parked the car near the apartment and was waiting in it while Joginder Singh went to the house of deceased S.N.Gupta and caused his murder by shooting him at point blank range. Narender Mann then helped to Joginder Singh to get away.

18. The case of the prosecution further is that a call was made from his mobile phone by Sachin Bansal to Narender Mann on 21st March 2006 soon after the killing of the deceased. This was to confirm if the killing had taken place. Narender Mann gave the confirmation by calling Sachin Bansal back. The police arrived at the scene of offence and commenced investigations. The blood

samples, cartridges collected at the spot were sent to the Forensic Science Laboratory („FSL) for the opinion of the ballistic expert. The letter delivered to S.N.Gupta by the assailant (Joginder Singh) was in an envelope with the address of S.N.Gupta hand written thereon. This was seized and sent to the FSL for comparison of handwriting. The call details of mobile phone 9818411470 from which Narender Mann gave a call to Sachin Bansal on the latter s phone 9818119624 on 21 st March 2006 CRL.REV.P. No. 335 of 2008 page 14 of 45 after the commission of the murder, were also recovered. The telephone records also showed that the accused were in contact with each other both before and after the occurrence.

Proceedings before the learned ASJ

19. Before the learned ASJ it was urged on behalf of the prosecution that against all the accused persons there exists a prima facie case for framing charges for the offences punishable under Section 120B IPC, 302 read with 120B/34 IPC, Section 201 IPC and Section 25 of the Arms Act. It was submitted that the disclosure statements made by the accused were admissible under Section 10 of the Indian Evidence Act, 1872 („EA) as all the accused were being tried together in the same case and therefore the statement made by one accused would be relevant against the other accused as well. The statements made by witnesses under Section 161 CrPC did show that accused Shiv Charan Bansal and Sachin Bansal had organized the committees, that the deceased and his son had invested in these committees, that they were demanding return of moneys which was not liked by the accused. It also disclosed the active involvement of Narender Mann, Lalit Mann, Rajbir Malik, Shailender and Joginder Singh Sodhi in the commission of the crime.

20. On behalf of the accused it was urged that the disclosure statements made by the accused after their arrest could not be used as CRL.REV.P. No. 335 of 2008 page 15 of 45 substantive evidence to prove the offence of criminal conspiracy in terms of Section 10 EA. Further the conspiracy would itself come to an end after the killing of S.N.Gupta and any statement made by any of the accused after the object of the alleged conspiracy was achieved, viz., the killing of S.N.Gupta, would not be admissible in the evidence. Barring the disclosure statements of the accused, which in any event were admissible only to a limited extent, there was no substantive independent evidence available to establish the conspiracy. There was no evidence to prove the motive for the crime. It was submitted that, therefore, the accused were liable to be discharged.

21. The learned ASJ agreed with the defence that the prosecution could not rely upon the disclosure statements of the accused as evidence of criminal conspiracy in terms of Section 10 EA. The evidence which had come to the knowledge of the investigating agency after the arrest of the accused persons was not legally admissible material which could give rise to a grave suspicion against the accused persons and therefore none of them could be charged with the offence of criminal conspiracy under Section 120B IPC. As regards conversations on the mobile phone between Narender Mann and Sachin Bansal it was held that the actual content of the conversations was not known and while the existence of calls may create a suspicion such suspicion was not grave enough to frame CRL.REV.P. No. 335 of 2008 page 16 of 45 charges against accused persons for the offences under Section 120B read with Section 302 IPC.

22. The learned ASJ then proceeded to discuss the case of each of the accused. As far as accused Joginder Singh was concerned, it was held that the writing on the envelope was confirmed by the FSL to be his. The ballistic expert had opined that the bullets recovered from the body of the deceased were fired from the recovered pistol of 7.5 mm. Joginder Singh Sodhi had also declined to participate in the TIP. Later the complainant Kanta Devi identified him as the assailant. The learned ASJ held that there was material to raise a grave suspicion against Joginder Singh Sodhi for being tried for the offence under Section 302 IPC.

23. As regards Narender Mann it was held that the weapon of offence was got recovered by Narender Mann from the office of accused Shailender at the instance of Narender Mann. The ballistic expert had connected the weapon with the cartridges recovered from the scene of occurrence. It was for Narender Mann to explain therefore the circumstances in which he had kept the weapon of offence at the office of Shailender. He was arrested on 29th March 2006 while travelling in an Esteem car from where the black cap, goggles and photo of the deceased were recovered. He had purchased two sets of goggles, black cap and beard. One set was given to Joginder Singh CRL.REV.P. No. 335 of 2008 page 17 of 45 Sodhi for wearing at the time of commission of the offence and the other set was kept by him. His licensed pistol was recovered from the office of Sachin Bansal. All these facts showed that he along with Joginder Singh Sodhi was liable to be tried for the offence under Section 302 IPC read with 34 IPC as well as under Section 25 of the Arms Act.

24. As regards Lalit Mann and Rajbir Malik, the learned ASJ found that the evidence was insufficient to charge them with any of the offences. As far as Shailender Singh is concerned, the learned ASJ held that the prosecution had failed to produce any document showing his ownership or possession of the premises in Rohini from which the weapon of offence was recovered. It was held that he could at the best be charged with the offence under Section 25 of the Arms Act. As regards Shiv Charan Bansal it was held that motive alone was not sufficient to frame a charge against them for the offence under Section 302 IPC. Nothing incriminating was recovered at his instance to connect him with the crime.

25. As regards Sachin Bansal it was held that his case was not very much different from that of his father Shiv Charan Bansal. The only additional evidence against him was that on 31st March 2006 he had got recovered the licensed pistol of Narender Mann and 11 live cartridges from his office. This by itself was not grave enough to CRL.REV.P. No. 335 of 2008 page 18 of 45 connect him with the crime of murder. Only a prima facie case under Section 25 of the Arms Act was held to be made out against Sachin Bansal.

Submissions of Counsel

26. Mr. V.K. Pahwa, learned counsel appearing on behalf of the State submits that there was an error in the basic approach of the learned ASJ as regards disclosure statements made by the accused. He submits that the disclosure statements to the extent that they led to the discovery of facts within the knowledge of the accused would nevertheless be, admissible in evidence under Section 27 EA. According to him, the disclosure statements made by Sachin Bansal and Narender Mann, which led to the recoveries as noted hereinbefore clearly gave rise to a grave suspicion

against each of them for their involvement in the offence. As regards the offence under Section 120B IPC, reference is made to the judgment of the Supreme Court in *State of Maharashtra v. Som Nath Thapa* (1996) 4 SCC 659 to submit that the handing over by Shailender Singh of the unlicensed weapon to Narender Mann would in fact draw him into the conspiracy. A reference is also made to the judgments in *Ajay Aggarwal v. Union of India* (1993) 3 SCC 609, *Mohd. Khaild v. State of West Bengal* (2002) 7 SCC 334, and *State v. Nalini* (1999) 5 SCC 253.

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27. Mr. Pawan Bahl who also appeared on behalf of the State to oppose the bail application of Narender Mann referred to the evidence that had come on record to show the purchase, by Narender Mann, of cartridges, the FSL reports that confirmed that the cartridges recovered from the spot were fired from the pistol used in the commission of the offence, the earlier complaints made by Suresh Gupta about the threats received by Naveen Gupta from Narender Mann and his associate Vijay Beniwal. According to him this evidence showed the involvement of Narender Mann in the larger conspiracy.

28. On behalf of Narender Mann, Mr. K.K.Sud learned Senior counsel submitted that the evidence on record does not justify the framing of any charge against him. He pointed out that there were several material unexplained discrepancies in the evidence gathered. There was overwriting in the arrest memo as regards the time of arrest of the accused. According to him the story of the recoveries of the black cap, goggles and photograph of S.N.Gupta from the Esteem car was absurd. The story of the prosecution is that after the crime was committed on 21st March 2006 Narender Mann was supposed to have travelled to Manali and returned on 29th March 2006 throughout carrying with him incriminating evidence in the dicky of the car. It is unlikely that a person who had master-minded the murder would be travelling with all the incriminating evidence in a car even 8 days after CRL.REV.P. No. 335 of 2008 page 20 of 45 the event. According to him these recoveries were planted. The case of the prosecution according to him also stood falsified by the fact that the threatening calls allegedly received by Satish Gupta were from the mobile phone of Vijay Beniwal and not Narender Mann. He states that those complaints only refer to "Mann" which could mean anyone with that surname and not necessarily Narender Mann. He states that there is absolutely no admissible evidence, except the so-called disclosures by the accused themselves, about the existence of the criminal conspiracy. There was no evidence to show that any financial transaction had taken place between the accused inter se and with the deceased. Even for the running of the committees there was no documentary evidence. In other words, there was no physical manifestation of the conspiracy. There was no action taken by the police on the two complaints stated to have been made by Satish Gupta. Since there were considerable doubts about the manner of arrest and the recoveries made, the benefit of doubt should in fact go to the accused. Mr. Sud submitted that there was no independent witness to any of the recoveries and therefore they should not be relied upon. There were no chance prints recovered from the weapon of offence. The weapon was reportedly returned to the Shailender when in the normal course it should have been destroyed. Likewise, there is no logical explanation why Narender Mann would give his licensed pistol and not the arms license to Sachin Bansal and that too after the commission of the crime. It was submitted that the evidence CRL.REV.P. No. 335 of 2008 page 21 of 45 against Narender Mann was too weak to justify the

framing of any charge for the offences mentioned. Mr.Sud referred to a large number of decisions to which a reference will be made hereafter.

29. In addition to the above submissions, it was urged by Mr.Sud, in the context of his plea for release of Narender Mann on bail, that he did not have any previous criminal record. He stays in a village 60 km away from the place of occurrence and had clean antecedents. He is the only son of his parents. He is married and has two minor children. He is an income tax assessee and the owner of a brick kiln and he had substantial agricultural land to the extent of 15 bighas in Manali where a five star hotel was planned to be constructed. Narender Mann he has been in custody since 29th March 2006. He was unlikely to violate any of the conditions of bail.

30. Mr. R.K.Naseem, learned counsel appearing for Shailender Singh and Shiv Charan Bansal submitted that statements made by the accused after the offence was complete cannot be used by invoking Section 10 of the EA for proving the existence of conspiracy. He referred to the decision in Pritam Hariomal v. Emperor AIR 1939 Sind 185 and State v. Nalini AIR (1999) SC 2640. According to him the statements of Naveen Gupta and Ramesh Gupta do not in fact state that Naveen borrowed any money from Narender Mann. According to him the story of the prosecution is unbelievable. It was inconceivable CRL.REV.P. No. 335 of 2008 page 22 of 45 that Sachin Bansal and Shiv Charan Bansal would want to eliminate S.N.Gupta only for retaining the moneys since in any event his son Rajesh Gupta would be continuing in ASPL. Therefore, those moneys were not bound to automatically come to Sachin Bansal or Shiv Charan Bansal. In support of his plea that motive alone was not sufficient to implicate the accused, Mr.Naseem referred to the judgments in Girja Shankar Misra v. State of U.P. AIR 1993 SC 2618 and Saju v. State of Kerala 2001 Cri LJ 102.

31. He pointed out that as far as Shailender Singh is concerned, the recovery itself was improbable. The weapon was not recovered as a consequence of his pointing out but that of Narender Mann. It was also recovered from a open drawer without a lock. Shailender Singh himself was arrested much later in June 2006. The statement of Ramesh was recorded even later on 17th November 2006. He criticized the failure of the prosecution to draw the attention of the trial court to either the supplementary charge sheet or the above statement of Ramesh and submitted that therefore those could not relied upon in the present revision petitions. Mr. Naseem submitted that the recovery at the instance of Narender Mann could not be used as evidence against Shailender Singh. The statement made by an accused leading to the discovery of a fact could be used only against that accused and not against a co-accused. In support of this proposition he referred to the judgment in Satish Chandra Seal v.

CRL.REV.P. No. 335 of 2008 page 23 of 45 Emperor AIR 1945 Cal 137. Mr. Naseem also pointed out that in their statements under Section 161 CrPC Satish Gupta and Rajesh Gupta state that according to them it was the accused who caused the death of the deceased. This he says is merely an opinion expressed by them and as such the statements cannot constitute evidence. He referred to the judgment in Rama Devi v. Delhi Admn.1986 CC Cases 932 (HC).

32. Appearing for Sachin Bansal, Ms. Pooja Anand learned counsel submitted that the evidence gathered by the prosecution against him was wholly insufficient to form a grave suspicion. She also

submitted that there was no evidence of the involvement of Sachin Bansal in any criminal conspiracy to murder S.N.Gupta. In particular, there is no evidence other than the disclosure statements of the accused about the meeting between Sachin Bansal, Shiv Charan Bansal and Narender Mann whereby a sum, including the sum for the assailant, was agreed to be paid to Narender Mann. She also submitted that Section 10 of the EA will have to be read along with Section 25 of the EA and Section 162 CrPC and it was impermissible to use the statement made by an accused while in custody to fasten liability against such accused or the co-accused. The photograph of S.N.Gupta allegedly given by Sachin Bansal to Narender Mann for identification was supposed to have been seized from the Esteem car in which Narender Mann was travelling when he was arrested on 29th March 2006. This photograph according to Ms.Anand was not from the marriage album of Sachin CRL.REV.P. No. 335 of 2008 page 24 of 45 Bansal and it did not fit into the blank space created by the police by tearing away some other photo in the marriage album. The colour of the photograph was also different from the colour of other photographs in the said album. In fact the deceased S.N.Gupta had not attended the marriage of Sachin Bansal and therefore there was no photograph of his in the album. According to her this completely delinked Sachin Bansal from the photograph allegedly recovered of S.N.Gupta from Narender Mann. In any event, it is submitted that since S.N.Gupta was a well known figure it did not appeal to reason that Narender Mann would need a photograph to identify him. The recovery of the photograph of the deceased as well as the marriage album from the Esteem car of Narender Mann was wholly improbable. She also urges that it is unbelievable that instead of destroying such incriminating evidence Narender Mann would keep them with him from 21st March to 29th March 2006. According to her the said incriminating evidence was planted in the car and ought not to be taken note of. As regards the telephone calls, it is submitted that the records show that Narender Mann had called Sachin Bansal at 4.45 pm. However since there was no copy of the actual conversation, no inference could be drawn that they were co-conspirators. This piece of evidence by itself was wholly insufficient to try Sachin Bansal for the offence under Section 120B IPC. As regards the story of the investment of Rs.60 to 70 lakhs by S.N.Gupta and Rajesh Gupta in the committees allegedly run by Shiv Charan Bansal and CRL.REV.P. No. 335 of 2008 page 25 of 45 Sachin Bansal it is submitted that it is improbable that there was no written record or exchange of correspondence between the parties on this aspect. Even the story of the attempt by the accused to retain the factory at Bahadurgarh as providing the motive for the crime was unbelievable since it was his son Rajesh Gupta who was the Director of ASPL and therefore there was no gain to the accused by eliminating S.N.Gupta. There was no complaint about any of these aspects till the death of S.N.Gupta.

33. In the written submissions filed by her, Ms. Anand has drawn attention to the additional disclosure statement of Sachin Bansal where he is supposed to have said that Narender Mann gave his own licensed pistol to Sachin Bansal after the event. It is submitted that the story of the pistol being handed over to Sachin Bansal after the event is a plain lie and only to rope in Sachin Bansal for the offence under Section 120B IPC. As regards the recovery of the licensed pistol of Narender Mann since in any event it had no connection with the offence, its recovery was to no effect. Since the statement of Narender Mann in this respect would not advance the theory of the prosecution about the actual weapon of offence used in the murder, this part of the disclosure statement loses significance. As long as the weapon and 11 cartridges recovered from the factory of Sachin Bansal were not used in the commission of offence, such recovery is to no effect at all. The fact that such

recovery did not take place from CRL.REV.P. No. 335 of 2008 page 26 of 45 Sachin Bansal soon after his arrest also created considerable doubt on the genuineness of such a recovery. In the absence of any independent public witness to such recovery it ought not to be believed. It is submitted that a holistic view of all the above circumstances would show that there is no evidence to draw the conclusion of a grave suspicion against Sachin Bansal for the commission of the offence.

34. Mr. Hariharan, learned counsel appearing on behalf of accused Rajbir Malik submitted that there was absolutely no evidence to connect him with the crime. Likewise, there is no evidence in respect of Lalit Mann as well. Joginder Singh Sodhi was produced from custody and was also represented by counsel in these proceedings. Mr. Sanjiv Kumar Jha, learned counsel on behalf of the complainant Kanta Devi, supplemented the arguments advanced on behalf of the State and submitted that the impugned order ought to be interfered with to the extent of discharge of some of the accused and not framing the charge against the principal accused under Section 120B IPC. Admissibility of statements by accused while in custody

35. This Court finds that the arguments before the learned ASJ proceeded principally on the basis that the existence of the criminal conspiracy is sought to be proved by the prosecution only through the disclosure statements made by the accused. Learned ASJ appears to CRL.REV.P. No. 335 of 2008 page 27 of 45 have accepted the arguments that these were made after the conclusion of the event i.e. the murder of the deceased and that therefore such statement would be inadmissible as evidence against the accused in terms of Section 10 EA.

36. The position as regards Section 10 EA is fairly well settled. In Mohd. Khalid v. State of West Bengal (2002)7 SCC 334 the Supreme Court had occasion to deal with the law as regards Section 10 EA. It was explained as under (SCC, p.360):

"The first condition which is almost the opening lock of that provision is the existence of "reasonable ground to believe" that the conspirators have conspired together. This condition will be satisfied even when there is some prima facie evidence to show that there was such a criminal conspiracy. If the aforesaid preliminary condition is fulfilled then anything said by one of the conspirators becomes substantive evidence against the other, provided that should have been a statement "in reference to their common intention".

It was further observed (SCC, p. 361):

"In a given case, however, if the object of conspiracy has not been achieved and there is still agreement to do the illegal act, the offence of a criminal conspiracy continues and Section 10 of the Evidence Act applies. In other words, it cannot be said to be a rule of universal application."

37. While it is true that statements made by the accused during the CRL.REV.P. No. 335 of 2008 page 28 of 45 subsistence of the conspiracy alone would be relevant, in the present case the prosecution is not relying entirely on the statements made by the accused while in custody to prove

the criminal conspiracy. Only such portion of the statement of an accused while in custody and which leads to the discovery of a fact in terms of Section 27 EA is admissible and only to that extent reliance can be placed on the said statement by the prosecution. In fact in Nalini the Supreme Court extended the time period up to the time of arrest of the accused. It was observed as under (SCC, p.312):

"111. Whether a particular accused had ceased to be a conspirator or not, at any point of time, is a matter which can be decided on the facts of that particular case. Normally a conspirator's connection with the conspiracy would get snapped after he is nabbed by the police and kept in their custody because he would thereby cease to be the agent of the other conspirators. Of course we are not unmindful of rare cases in which a conspirator would continue to confabulate with the other conspirators and persist with the conspiracy even after his arrest. That is precisely the reason why we said that it may not be possible to lay down a proposition of law that one conspirator's connection with the conspiracy would necessarily be cut off with his arrest.

112. In this case, prosecution could not establish that the accused who were arrested continued to conspire with those conspirators remaining outside. Prosecution cannot contend that the confession made by one accused in this case can be substantive evidence against another accused under Section 10 of the Evidence Act. At any rate we cannot uphold the CRL.REV.P. No. 335 of 2008 page 29 of 45 contention that confessions made by an accused can be used as substantive evidence against another co-accused on the principle enunciated in Section 10 of the Evidence Act."

Turning to the facts of the present case therefore the evidence that was available as to what transpired between the accused after the event and up to the stage of the arrest of the accused would be relevant. The recoveries made at the instance of the accused in terms of Section 27 IEA would also be relevant.

38. It must be remembered that there is a whole world of difference between a disclosure statement made by an accused and a confession made by an accused. The confession by an accused stands on a very different footing. The statement under Section 161 CrPC made to the police while in custody is not admissible as a confession by the accused. Such confession would have to be necessarily before the Court in the manner contemplated by law. A retracted confession cannot form a substantive piece of evidence against an accused. It would require to be corroborated by independent, reliable evidence. Against a co-accused it forms an even weaker piece of evidence. The law in this regard was explained in *Shankar v. State of Tamil Nadu* (1994) 4 SCC 478 (SCC, p.503):

"The confession is a form of admission consisting of direct acknowledgement of guilt in a criminal charge. It must be in CRL.REV.P. No. 335 of 2008 page 30 of 45 express words by the accused in a criminal case of the truth of the guilt fact charged or some essential part of it and a statement that contains a self-exculpatory matter cannot amount to a confession. The confession should be a voluntary one, that means not

caused by inducement, threat or promise. Whether a confession is voluntary or not is essentially a question of fact. The judicial confessions are those which are made before a Magistrate or in court in due course of legal proceedings and when such a confession is retracted, the courts have held that apart from the statement being voluntary it should be true and should receive sufficient corroboration in material particulars by independent evidence. The rule of prudence namely requiring corroboration does not mean that each and every circumstance mentioned in the confession with regard to the participation of the accused in the crime must be separately and independently corroborated. It is sufficient if there is general corroboration of the important incidents, just like in the case of an approver's evidence and it is not necessary that the corroborative evidence itself should be sufficient for conviction."

Therefore there is no question of a statement made to the police by an accused while in police custody forming a substantive piece of evidence on the basis of which criminal conspiracy can be proved.

39. Mr. Naseem appears to be right in his submission that a statement made by an accused in custody leading to the discovery of facts would be relevant only against such accused and not against the co-accused. Although there are observations to the contrary in a judgment of the CRL.REV.P. No. 335 of 2008 page 31 of 45 learned Single Judge of this Court in Manoj Kumar v. State 144 (2007) DLT 210, this Court is persuaded to follow the view expressed by the Division Bench of the Calcutta High Court in Satish Chandra Seal v. Emperor AIR 1945 Cal 137. There it was held (AIR, p. 140-

141):

"Section 27 only lets in so much of the statements, whether they amount to a confession or not, as relates distinctly to the fact thereby discovered.Further reading S.27 with S.26 to which it is a proviso it appears clear to us that the statements or if the whole of any of them is not admissible, the parts of them which are admissible, can be proved only against the person who made it."

40. Thus in the instant case, the disclosures made by Narender Mann leading to the recovery of the weapon of offence can be used only against him and not against any other co-accused. The disclosure made by Narender Mann leading to the recovery of the weapon used in the commission of the crime from the office of Shailender Singh cannot be used against Shailender Singh himself. Likewise, the recovery made of the licensed weapon given by Narender Mann to Sachin Bansal which was recovered at the instance of Sachin Bansal cannot be used against Narender Mann. To this extent the learned counsel is justified in criticizing the attempt by the prosecution to use such evidence of recovery made pursuant to the disclosure of one accused against another accused.

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41. What the learned ASJ ought to have done was to collate the evidence against an accused (only to the extent they were admissible as such) and analyse them collectively and determine if such evidence gave rise to a grave suspicion against each of the accused. On the other hand, the learned ASJ appears to have first rejected the entire disclosure statements of the accused and then proceeded to analyse the probative value of each piece of evidence. Later when the learned ASJ considered the evidence against each of the accused, he kept aside the disclosure statements and the telephone records wholly and then considered whether the remaining evidence justified the framing of charge. This approach, in the considered view of this Court, was erroneous.

42. Learned counsel for the State was right in drawing the attention of this Court to the position in law as regards evidence of conspiracy. Both in *Som Nath Thapa* as well as *State v. Nalini*, the Supreme Court had occasion to explain that the evidence in conspiracy has to be evaluated by taking a holistic view since it is very difficult to come across the direct evidence to substantiate a conspiracy. Likewise, in *Ajay Aggarwal* the Supreme Court has observed that although a crime is complete as soon as the crime is made "but it is not a thing of the moment. It does not end with the making of the agreement. It will continue so long as there are two or more parties to it intending to CRL.REV.P. No. 335 of 2008 page 33 of 45 carry into effect the design." Therefore the telephone record of the conversation between Sachin Bansal and Narender Mann would in fact be a relevant evidence for proving the conspiracy. The submission that there must always be some physical manifestation of the conspiracy does not appear to be entirely correct. In *Kehar Singh v. State (Delhi Admn.)*(1988) 3 SCC 609 the Supreme Court held (SCC, p.732-33):

"275. Generally, a conspiracy is hatched in secrecy and it may be difficult to adduce direct evidence of the same. The prosecution will often rely on evidence of acts of various parties to infer that they were done in reference to their common intention. The prosecution will also more often rely upon circumstantial evidence. The conspiracy can be undoubtedly proved by such evidence direct or circumstantial. But the court must enquire whether the two persons are independently pursuing the same end or they have come together in the pursuit of the unlawful object. The former does not render them conspirators, but the latter does. It is, however, essential that the offence of conspiracy require some kind of physical manifestation of agreement. The express agreement, however, need not be proved. Nor actual meeting of two persons is necessary. Nor it is necessary to prove the actual words of communication. The evidence as to transmission of thoughts sharing the unlawful design may be sufficient. Gerald Orchard of University of Canterbury, New Zealand explains the limited nature of this proposition:

„Although it is not in doubt that the offence requires some physical manifestation of agreement, it is important CRL.REV.P. No. 335 of 2008 page 34 of 45 to note the limited nature of this proposition. The law does not require that the act of agreement take any particular form and the fact of agreement may be communicated by words or conduct. Thus, it has been said that it is unnecessary to prove that the parties "actually came together and agreed in terms" to pursue the unlawful object; there need never have been an express verbal agreement, it being sufficient that there was

"a tacit understanding between conspirators as to what should be done. "

Existence of material against each accused

43. In *Union of India v. Prafulla Kumar Samal*, (1979) 3 SCC 4 the following principles were explained as guiding the function of the criminal court while passing an order on charge (SCC, p.9):

"10. Thus, on a consideration of the authorities mentioned above, the following principles emerge:

(1) That the Judge while considering the question of framing the charges under Section 227 of the Code has the undoubted power to sift and weigh the evidence for the limited purpose of finding out whether or not a prima facie case against the accused has been made out.

(2) Where the materials placed before the Court disclose grave suspicion against the accused which has not been properly explained the Court will be fully justified in framing a charge and proceeding with the trial.

(3) The test to determine a prima facie case would naturally depend upon the facts of each case and it is difficult to lay down a rule of universal application. By and large however if two views are equally possible and the Judge is satisfied that the evidence produced before him while giving rise to some suspicion but not grave suspicion against the accused, he will be fully within his right to discharge the accused.

CRL.REV.P. No. 335 of 2008 page 35 of 45 (4) That in exercising his jurisdiction under Section 227 of the Code the Judge which under the present Code is a senior and experienced court cannot act merely as a Post Office or a mouthpiece of the prosecution, but has to consider the broad probabilities of the case, the total effect of the evidence and the documents produced before the Court, any basic infirmities appearing in the case and so on. This however does not mean that the Judge should make a roving enquiry into the pros and cons of the matter and weigh the evidence as if he was conducting a trial."

44. Keeping the above principles in view, this Court proceeds to examine whether the evidence on record vis-a-vis each of the accused justifies the framing of charge. As regards Narender Mann the earlier complaints made by Satish Gupta about the threatening calls received by him and by Naveen Gupta would indeed be relevant. The criticisms of Mr. K.K.Sud that the surname „Mann“ was a common one and need not refer to Narender Mann cannot be accepted. Given the context of the case and that Naveen Gupta did receive threatening calls, the said complaints cannot be brushed aside as having no connection with Narender Mann. The statements made by them under Section 161 CrPC are as witnesses and not as an accused and therefore would form evidence that can be relied upon at the stage of charge to draw a conclusion whether a grave suspicion exists against Narender Mann.

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45. The criticism that Naveen Gupta does not mention about his owing money to Narender Mann is also without substance. At the present stage, the trial court is not expected to analyse the evidence in great detail. It is possible that what Naresh Gupta has stated as a witness, may be used to confront him under Section 162 at the trial. At the present stage the statement of each of the witnesses i.e. Suresh Gupta, Rajesh Gupta and the others would be relevant to the extent that they have clearly named Sachin Bansal and Narender Mann, apart from certain other accused as the perpetrators of the crime.

46. It is not possible for this Court to accept the submission that this is a mere opinion expressed by the witness. The word "isiliye" in their statements prima facie supplies the motive for the crime and not their opinion as to why it took place. In any event at the present stage a detailed analysis of the above statements is not expected to be undertaken by the Court.

47. It is not as if only the statements of these witnesses under Section 161 CrPC are being relied upon by the prosecution to show the involvement of Sachin Bansal or Narender Mann. The other pieces of evidence include the statements made by Ashok Aggarwal and Ajay Gupta under Section 164 CrPC which is indeed a substantive piece of evidence. They have spoken of the existence of committees and of the investments made by the deceased and his son in those committees CRL.REV.P. No. 335 of 2008 page 37 of 45 run by Shiv Charan Bansal and Sachin Bansal. A criticism that it is unlikely that transactions involving Rs.60 to 70 lakhs have taken place without any written record, is again misplaced particularly at the present stage. Whether in fact in the running of such committees it is a practice to keep or preserve the written record or not would be a matter of evidence. It is not unusual that persons running such committees may not maintain records, at least not in the manner financial institutions do. The probative value of whatever documents have been recovered by the prosecution during the course of investigations to show the running of these committees can be determined only at the trial.

48. As regards Narender Mann, the evidence gathered against him relates includes the joint recovery of the photograph, the black cap and goggles from the Esteem car, the recovery of the Getz car and the recovery of the unlicensed weapon along with two live cartridges from the office of Shailender Singh. The criticism of the recoveries from the Esteem car as being absurd may have to be again tested at the trial. Even if the court were not to go by the said recovery, the recovery of the cartridges from the scene of the offence and those cartridges being shown by the reports of the FSL to have been fired from the weapon which has been recovered at the instance of the Narender Mann from the alleged premises of Shailender Singh is a very formidable piece of evidence that prima facie connects him to the CRL.REV.P. No. 335 of 2008 page 38 of 45 crime. That Narender Mann had himself an arms licence and that he owns a weapon is also not in dispute. There are invoices to show that he had purchased live cartridges using the said licence. While these pieces of evidence when considered separately may not suffice to prove the existence of a criminal conspiracy, when seen in totality they might. At the present stage, when viewed collectively they give rise to a strong suspicion of the involvement of Narender Mann in the criminal conspiracy.

49. As regards Sachin Bansal, the recovery of Narender Mann's licensed weapon and 11 live cartridges from his office is one important piece of evidence linking him with Narender Mann. The record of the calls made soon after the incident is another. Again, the probative value of such evidence, when viewed collectively, cannot be determined at this stage. The statements of the witnesses naming him as a possible suspect in the murder of S.N.Gupta cannot at this stage be brushed aside. Their examination at the trial will ultimately determine if their evidence is to be believed. The same is the position as regards the photograph of S.N.Gupta. Although the arguments in this regard appear plausible, it is impossible to evaluate the evidence in this regard at the present stage. At the same time they cannot be kept outside the cauldron of relevant evidence for testing if the case for framing a charge against the accused has been made out.

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50. As regards Joginder Singh Sodhi it is surprising that the learned ASJ did not invoke Section 120B IPC since he was very much part of the conspiracy and without his shooting the deceased at point blank range, the crime would not have been completed. Also this is not a crime that took place at the spur of the moment. It was preceded by careful planning. The trial court erred in concluding that there is no evidence of the existence of a criminal conspiracy involving Sachin Bansal, Narender Mann and Joginder Singh Sodhi in the commission of the offence. In the considered view of this Court the material on record when viewed collectively gives rise to a strong suspicion of the commission of the offence of criminal conspiracy by Sachin Bansal, Narender Mann and Joginder Singh.

51. Now turning to Shailender Singh, this court finds merit in the criticism that the disclosure made by Narender Mann leading to the recovery of the unlicensed weapon used in the crime cannot be used against Shailender Singh. The evidence of Shailender Singh being in possession of the premises from where the said weapon was recovered also creates only a suspicion at the highest and not a grave suspicion. The prosecution has been unable to explain why it took them 8 months to record the statement of Ramesh who was on the ground floor of the same building. The mere fact that he gave this address in an application form for grant of a mobile connection is too weak a piece of evidence to rope him in. The so called disclosure by CRL.REV.P. No. 335 of 2008 page 40 of 45 Shailender after his arrest leading to the same open table draw where the weapon was kept is to no effect as by that time Narender Mann had already led the police there and the weapon already stood recovered. In the considered view of this Court there is no evidence to connect Shailender Singh with the offence even under Section 25 of the Arms Act. The petition by Shailender Singh is entitled to succeed because the prosecution has not been able to prove the offence against him even under Section 25 of the Arms Act.

52. As regards Rajbir Malik, Shiv Charan Bansal and Lalit Mann, this Court concurs with the view expressed by the learned ASJ that the evidence on record is too weak to link them with the murder of S.N.Gupta. Although in the statements made by Rajesh Gupta and Satish Gupta there is a reference to Shiv Charan Bansal running the committees there is nothing to show that he was part of the actual conspiracy to commit the murder. While some of the witnesses have specifically named Sachin Bansal and Narender Mann as being responsible for the murder they did not name Shiv

Charan Bansal. In any event, at best it would supply the motive for the commission of the offence but not show the involvement of Shiv Charan Bansal himself in the commission of the offence.

Conclusions regarding charge

53. The net result of the above discussion is as under.

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(a) There is sufficient evidence to form a grave suspicion against Narender Mann, Sachin Bansal and Joginder Singh Sodhi for the offences under Section 120B IPC read with 302/34 IPC and Section 120B IPC read with Sections 25/27 of the Arms Act and substantively for the offence under Section 120B IPC. The charges against each of them would accordingly stand modified. The criminal revision petitions of Sachin Bansal and Narender Mann stand dismissed and the criminal revision petition of the State stands allowed to the above extent.

(b) As regards Shiv Charan Bansal, Rajbir Malik and Lalit Mann there may be evidence to form a suspicion about their involvement but not a grave suspicion to justify the framing of charges. Therefore the order of the learned ASJ discharging these accused is confirmed. The State's revision petition to that extent is rejected.

(c) As regards Shailender Singh, the evidence on record does not justify the formation of a grave suspicion against him for the offence even under Section 25 of the Arms Act. In the considered view of this Court, Shailender Singh is entitled to be discharged. Accordingly, his revision petition will stand allowed and the State's revision petition to that extent stands rejected.

(d) The revision petition of the complainant Kanta Devi is also CRL.REV.P. No. 335 of 2008 page 42 of 45 disposed of in the same terms as the revision petition filed by the State.

54. It is clarified that the discussion of the materials on record in the present order is only for determining whether the framing of charges against the accused is justified or not. As regards the accused against whom charges have been directed to be framed, the observations made are not intended to influence the opinion to be formed by the trial court upon an independent assessment of the evidence at the conclusion of the trial.

Narender Mann's bail application

55. The above discussion shows that the crime for which Narender Mann has been charged is indeed a grave one. The trial is yet to commence and there are bound to be several public witnesses who might speak about his involvement. In the considered view of this Court it would not be safe to enlarge Narender Mann on bail at the present stage when the trial is yet to commence and public witnesses are yet to be examined. He is permitted to renew his plea for bail before the trial court after the public witnesses have been examined. It would be for the trial court to form an independent opinion on such prayer uninfluenced by any observation made by this Court in the

present order. This order will also however not preclude the trial court from examining his plea for interim bail, if any, on sufficient grounds CRL.REV.P. No. 335 of 2008 page 43 of 45 being shown.

56. It is accordingly ordered that:

(a) Crl. Rev. P. No. 335 of 2008 (State of NCT of Delhi v. Shiv Charan Bansal & Ors.) and Crl. Rev. P. No. 191 of 2008 (Kanta Devi v. State and Ors.) stand disposed of in terms of this order.

Narender Mann, Sachin Bansal and Joginder Singh Sodhi are, in addition to the offences with which they have been charged by the impugned order, also charged for the offences under Section 120B IPC read with 302/34 IPC, Section 120B IPC read with Sections 25/27 of the Arms Act and substantively under Section 120B IPC alone. The trial court will pass formal orders in accordance with law to the above effect and enter the pleas of the said accused on the added charges.

(b) The impugned order dated 17th March 2008 passed by the learned ASJ is confirmed to the extent that Shiv Charan Bansal, Rajbir Malik and Lalit Mann have been discharged. To that extent, the petitions of the State and Kanta Devi are rejected.

(c) Crl. Rev. P. No. 405 of 2008 (Sachin Bansal v. State of Delhi) and Crl. Rev.P. No. 342 of 2008 (Narender Mann v. State) are dismissed.

(d) Crl. Rev.P. No. 430 of 2008 of Shailender Singh is allowed and he stands discharged.

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(e) Bail Appln. No. 516 of 2009 (Narender Mann v. The State) is dismissed.

57. The trial court record be sent back immediately. The case will be listed before the trial court on 1st July 2009 for further proceedings in terms of the present order.

S.MURALIDHAR, J

MAY 29, 2009
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